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KARUBHAI JADABHAI PADSARIYA v. STATE OF GUJARAT

Gujarat High Court (Apr 25, 2023)

CASE NO.

R/CR.MA/5879/2023

JUDGES

- Hon'ble Mr. Justice Nirzar S. Desai

ATTORNEY

- MR PREMAL S RACHH(3297)
- PUBLIC PROSECUTOR(2)

R/CR.MA/5879/2023 ORDER DATED: 25/04/2023

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

R/CRIMINAL MISC.APPLICATION NO. 5879 of 2023

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KARUBHAI JADABHAI PADSARIYA

Versus

STATE OF GUJARAT

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Appearance:

MR PREMAL S RACHH(3297) for the Applicant(s) No. 1 MR. UTKARSH
SHARMA APP for the Respondent(s) No. 1

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CORAM:HONOURABLE MR. JUSTICE NIRZAR S. DESAI

Date : 25/04/2023

ORAL ORDER

1. The present application is filed under Section 439 of the Code of Criminal Procedure, 1973, for regular bail in connection with FIR being

CR NO.11202045220559 of 2022 registered with Panch 'A' Division Police Station, District: Jamnagar, for offences under Sections 376(2) (N), 376(3) & 114 of the IPC and 1under Sections 4,6,12 & 17 of POCSO Act.

2. Learned Advocate appearing for the applicant submits that considering the nature of the offence, the applicant may be enlarged on regular bail by imposing suitable conditions.

3. Learned Additional Public Prosecutor appearing on behalf of the respondent-State has opposed grant of regular bail looking to the nature and gravity of the offence.

Page 1 of 4

4. Learned Advocate appearing on behalf of the respective parties do not press for further reasoned order.

5. Having heard the learned advocates for the parties and perusing the material placed on record and taking into consideration the facts of the case, nature of allegations, gravity of offences, role attributed to the accused, without discussing the evidence in detail, this Court is of the opinion that this is a fit case to exercise the discretion and enlarge the applicant on regular bail.

6. This Court has considered the following aspects:-

(a) the applicant is in jail since 04.08.2022;

(b) Investigation is over and charge sheet is filed.

(c) Co accused having identical role as compared to present applicant are granted bail by trial Court. Co accused namely Mr. Jivrajbhai P. Kanjariya has been released by the 2nd Addl. Sessions Judge & Special Judge for *Rape* & Pocso cases, Jamnagar vide order dated: 23.02.2023 rendered in Criminal Misc. Application No. 244/2023, as also Mahendrabhai R. Jadeja has been released by the 2nd Addl. Sessions Judge & Special Judge for *Rape* & Pocso cases, Jamnagar vide order dated: 01.03.2023 rendered in Criminal Misc. Application No. 275/2023, as also Dayabhai M. Parmar has been released by the 2nd Addl. Sessions Judge & Special Judge for *Rape* & Pocso cases, Jamnagar vide order dated: 01.03.2023 rendered in Criminal Misc. Application No. 276/2023, as also Ladhhabhai P. Kanjariya has been released by the 2nd Addl. Sessions Judge & Special Judge for *Rape* & Pocso cases, as also Bhikhubha @ Babbha J. Jadeja has been released by the 2nd Addl. Sessions Judge & Special Judge for *Rape* & Pocso cases, Jamnagar vide

order dated: 10.03.2023 rendered in Criminal Misc. Application No. 309/2023, as also Nathabhai V. Matiya has been released by the 2nd Addl. Sessions Judge & Special Judge for *Rape* & Pocso cases, Jamnagar vide order dated: 07.03.2023 rendered in Criminal Misc. Application No. 313/2023, as also Kuldeepsinh G. Jadeja has been released by the 2nd Addl. Sessions Judge & Special Judge for *Rape* & Pocso cases, Jamnagar vide order dated: 10.03.2023 rendered in Criminal Misc. Application No. 332/2023.

(d) No past antecedents.

(e) Though all the co accused have been granted bail are more than 50 years of age, till date no application for cancellation of bail is filed.

(f) Hence, on the ground of parity, present case of applicant is considered.

In the facts and circumstances of the present case, I am inclined to consider the case of the present applicants.

7. This Court has also taken into consideration the law laid down by the Hon'ble Apex Court in the case of [Sanjay Chandra Vs. Central Bureau of Investigation](#), reported in [2012] 1 SCC 40.

8. Hence, the present application is allowed. The applicant is ordered to be released on regular bail in connection with FIR being

11202045220559 of 2022 registered with Panch 'A' Division Police Station, District: Jamnagar on executing a personal bond of Rs.10,000/- (Rupees Ten Thousand only) with one surety of the like amount to the satisfaction of the trial Court and subject to the conditions that he shall;

[a] not take undue advantage of liberty or misuse liberty;

- [b] not act in a manner injurious to the interest of the prosecution;
- [c] surrender passport, if any, to the lower court within a week;
- [d] not leave the India without prior permission of the concerned trial court;
- [e] mark presence before the concerned Police Station between 1st to 10th day of every English calendar month for a period of six months between 11:00 a.m. and 2:00 p.m.;
- [f] furnish the present address of residence to the Investigating Officer and also to the Court at the time of execution of the bond and shall not change the residence without prior permission of the concerned trial court;

9. The authorities shall adhere to its own Circular relating to COVID- 19 and, thereafter, will release the applicant only if he is not required in connection with any other offence for the time being. If breach of any of the above conditions is committed, the Sessions Judge concerned will be free to issue warrant or take appropriate action in the matter. Bail bond to be executed before the lower Court having jurisdiction to try the case. It will be open for the concerned Sessions Court to delete, modify and/or relax any of the above conditions, in accordance with law.

10. At the trial, the Trial Court shall not be influenced by the prima facie observations made by this Court in the present order.

11. **Rule is made absolute to the aforesaid extent.** Direct service is permitted.

(NIRZAR S. DESAI,J)

RB DESAI